
SALE AGREEMENT

For the Sale of Land and Property

Ref: SA/2026/001

THIS AGREEMENT is made on this _____ day of _____, 20____

BETWEEN:

1. JOHN KAMAU MWANGI

ID No. 12345678, of P.O. Box 1234-00100, Nairobi (hereinafter "the Vendor")

2. MARY WANJIKU NJORGE

ID No. 87654321, of P.O. Box 5678-00200, Nairobi (hereinafter "the Purchaser")

NOW THEREFORE, the parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

In this Agreement, unless the context otherwise requires: "Property" means all that parcel of land known as LR No. 209/12345 situated in Nairobi County; "Purchase Price" means the sum of KES 12,500,000; "Completion Date" means 45 days from the date of this Agreement.

2. SALE AND PURCHASE

The Vendor agrees to sell and the Purchaser agrees to purchase the Property on the terms and conditions set out in this Agreement.

3. PURCHASE PRICE

The Purchase Price for the Property shall be KES 12,500,000 (Twelve Million Five Hundred Thousand Kenya Shillings only) payable as follows: (a) A deposit of 10% (KES 1,250,000) upon execution of this Agreement; (b) The balance of 90% (KES 11,250,000) on or before the Completion Date.

4. DEPOSIT

The Purchaser shall pay the deposit to the Vendor's advocates, to be held as stakeholder pending completion.

5. COMPLETION

Completion shall take place on the Completion Date at the offices of the Vendor's advocates or at such other place as the parties may agree.

6. VACANT POSSESSION

The Vendor shall give vacant possession of the Property to the Purchaser on the Completion Date.

7. RISK AND INSURANCE

The Property shall be at the risk of the Vendor until the Completion Date. The Vendor shall maintain adequate insurance cover until completion.

8. REPRESENTATIONS AND WARRANTIES

The Vendor warrants that: (a) The Vendor has good and marketable title to the Property; (b) There are no encumbrances, charges, or liens affecting the Property; (c) All rates, taxes, and outgoings have been paid up to date.

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9. DEFAULT

If the Purchaser fails to complete on the Completion Date, the Vendor may: (a) Forfeit the deposit; (b) Rescind the Agreement; (c) Sue for specific performance.

10. DISPUTE RESOLUTION

Any dispute arising out of this Agreement shall first be referred to mediation. If not resolved within 30 days, the dispute shall be referred to arbitration in accordance with the Arbitration Act, Cap 49 Laws of Kenya.

11. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the Republic of Kenya.

12. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, and agreements.

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SCHEDULES

Schedule 1: Description of the Property

LR No. 209/12345, measuring approximately 0.25 hectares, situated in Nairobi County, registered under the Registration of Titles Act, Cap 281.

Schedule 2: Payment Schedule

Deposit: KES 1,250,000 upon execution. Balance: KES 11,250,000 on or before Completion Date.

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This page forms part of the above-mentioned agreement.

IN WITNESS WHEREOF, the parties have executed this agreement on the date first above written.

SIGNED by the said _____

In the presence of: _____

Name: _____

ID/Passport: _____

Signature: _____

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